



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: *[Signature]*
MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 114TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON FEBRUARY 25, 2025

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Nilo S. Bigno SB Member
Hon. Renato A. Calañas SB Member
Hon. Michael C. Escuyos SB Member
Hon. Elvie U. Ohao SB Member
Hon. Tanie A. Quillano SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian ABC President
Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Rencio P. Valeroso SB Member
Hon. Carmelito E. Valeroso SB Member

ORDINANCE NO. 03
Series of 2025

“AN ORDINANCE REGULATING MOTORCYCLE DRIVERS AND BACKRIDERS FROM WEARING BONNETS, MASK, OR ANY FACE COVERINGS THAT CONCEAL THEIR IDENTITY WITHIN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR AND IMPOSING PENALTIES IN VIOLATION THEREOF”

Sponsor: Hon. Nilo S. Bigno

Enacted: All Members Present

EXPLANATORY NOTE

One of the alarming issues affecting the municipality very recently are incidents involving unknown assailants in nearby municipalities, wherein the perpetrators wore and used bonnets and masks to cover their identities in order to escape arrest from Police authorities and authorized law enforcers and evade prosecution. The cases related to physical assault by mask/bonnet-wearing assailant with their motorcycle, shooting incidents which have remained unsolved due to lack of witnesses to identify the perpetrators and most likely, due to the bonnets, masks worn by these criminals during the incident.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in session assembled that:

SECTION 1. Short Title- This Ordinance shall be known and cited as “AN ORDINANCE REGULATING MOTORCYCLE DRIVERS AND BACKRIDERS FROM WEARING BONNETS, MASK, OR ANY FACE COVERINGS THAT CONCEAL THEIR IDENTITY WITHIN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR AND IMPOSING PENALTIES IN VIOLATION THEREOF.”

SECTION 2. Declaration of Policy- It is hereby declared the policy of the Municipality of Carmen, Surigao del Sur to maintain public order and ensure the safety and security of its residents and visitors. Recognizing the increasing incidents of criminal activities, particularly those involving motorcycle riders who conceal their identities using bonnets, and masks, it is imperative to adopt measures that prevent the misuse of such items for unlawful purposes.

SECTION 3. Objectives-

- 1) To enhance public safety and security by preventing individuals from concealing their identities while driving motorcycles or riding as back riders which can contribute to any criminal activities and other offenses.
- 2) To deter crime and unlawful activities by making it easier for law enforcement authorities and the public to identify individuals riding motorcycles, especially in cases of traffic violations, accidents and crimes.
- 3) To protect the general welfare of the community by reducing incidents of criminality that involve the use of bonnets and masks to obscure the identity of offenders thus, fostering a safer environment for the municipality.
- 4) To promote transparency and accountability in public spaces by ensuring that motorcycle drivers and passengers can be easily recognized by law enforcement authorities and civilians.
- 5) To support law enforcement efforts by reducing the anonymity that masks and bonnets provide thus, aiding in crime prevention, surveillance, and the apprehension of offenders.
- 6) To establish clear rules and penalties for individuals who violate the ordinance, ensuring strict enforcement and compliance, and discouraging the misuse of protective gear for criminal purposes.

SECTION 4. Definition of terms-

- 1) **Helmet-** is a protective headgear designed to safeguard a rider's head during a motorcycle ride, particularly in the event of an accident. Helmets are crucial for reducing the risk of severe head injuries or fatalities in crashes. They are typically made from materials like polycarbonate, fiberglass, or carbon fiber, and include inner padding for comfort and impact absorption.
- 2) **Bonnet-** typically refers to a type of headwear that covers both the head and parts of the face. It combines the features of a traditional bonnet (which covers the head) with a face covering, often designed for protective or modesty purposes. Depending on its design and use, a face cover bonnet can serve different functions.
- 3) **Mask-** refers to any type of mask worn over the nose and mouth, primarily for protection or concealment. There are several contexts in which face cover masks are used.

- 4) **Motorcycle-** is a two-wheeled motor vehicle that is powered by an engine. It is designed for one or two riders and its key features include handlebars for steering, a saddle-style seat and footrests for the rider. Motorcycles are widely used for transportation, recreation, and sport.
- 5) **Motorcycle Driver-** is a person who operates a motorcycle. The role of a motorcycle driver involves controlling the motorcycle's speed, direction and balance while navigating roads and traffic. Just like drivers of other vehicles, motorcyclists must follow traffic laws but they also face unique challenges due to the two-wheeled nature of the vehicle which requires skill and focus to maintain balance and control.
- 6) **Back Rider-** refers to a passenger who rides on the back of a motorcycle behind the driver. The back rider typically sits on a designated seat or area designed for passengers and is not in control of the motorcycle.

SECTION 5. Prohibition within the Municipality- All motorcycle drivers and back riders are prohibited to wear bonnets and masks when driving within the Municipality of Carmen.

SECTION 6. Medical Conditions- Drivers and back riders wearing and using masks and bonnets to prevent inhaling dusts because of medical condition must present medical record/document to justify their intention.

SECTION 7. Valid Identification Card- Individuals who are not operating motorcycle are prohibited to wear bonnets, and mask in public places except in their respective homes or private places, as a consequence hereof, the authorized law enforcers shall require the person to remove their mask or bonnet and present valid Identification Card for their identity to avoid apprehension under this ordinance.

SECTION 8. Checkpoints- All motorcycle drivers and back riders must take off their helmets, bonnets or masks upon order of the law enforcement agencies manning the checkpoints.

SECTION 9. Penalties- Violation of any provision/s of this ordinance shall suffer the following fines and penalties:

First Offense	-	Two Hundred Pesos (Php200.00)
Second Offense	-	Five Hundred Pesos (Php500.00)
Third Offense	-	Seven Hundred Pesos (Php700.00)

SECTION 10. Implementing Office- All traffic enforcers of the Municipality and all Barangay Tanods in their respective barangays and the members of the Philippine National Police (PNP) and Armed Forces of the Philippines (AFP) shall enforce this ordinance.

SECTION 11. Separability Clause- The provisions of this Ordinance are hereby declared separable and if any provision shall be held invalid, or unconstitutional, the remaining portion hereof are not affected and shall remain valid and effective.

SECTION 12. Repealing Clause- All ordinances, resolutions, rules and regulations inconsistent with or contrary to the provisions of this Ordinance are hereby repealed, amended or modified accordingly.

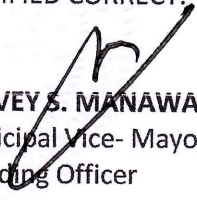
SECTION 13. Effectivity Clause- This Ordinance shall take effect immediately after fifteen (15) days after due compliance with all the requirements provided for under R.A. 7160 and from the date, a copy thereof is posted on a bulletin board at the entrance of the Municipal Hall, as the case maybe, in at least two (2) other conspicuous places in the Municipality.

ENACTED this 25th day of February, 2025 at Carmen, Surigao del Sur.

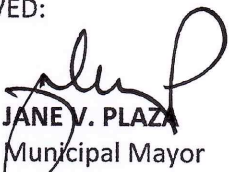
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor